Fort Bend County District Court

Cause No. 2024-CV-0030

Ryan Miller, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	December 17, 2024
Plaintiff's counsel:	Henry Schwartz, Conley & Stephenson Law Group

PARTIES

Plaintiff Ryan Miller is an individual residing in Texas who was the driver and sole occupant of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the liability and uninsured/underinsured motorist policy under which Palintiff seeks coverage and benefits. Defendant may be served through its registered agent for service of process.

FACTS

On May 26, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in League City, Texas, traveling in the lane nearest the center of the road. The other driver, an insured of Defendant, attempted to change lanes into the lane occupied by Plaintiff wihtout first confirming that the lane was clear. The insured's vehicle struck the side of Plaintiff's vehicle, forcing it toward the curb and causing Plaintiff to brake and grip the steering wheel to regain control. Plaintiff reported the collision to Defendant promptly and provided all information requested. Defendant has acknowledged coverage for the insured driver's liability but has not offered a fair settlement of Plaintiff's claim.

NEGLIGENCE

The insured driver owed a duty to Plaintiff and other motorists to exercise ordinary care when changing lanes, including the duty to signal, check mirrors and blind spots, and yield the right of way. The insured breached that duty by changing lanes when it was unsafe to do so, and that breach directly and proximately caused the collision and Plaintiff's injuries. Defendant is liable for the insured's negligence to the extent of the coverage provided under its policy, and Defendant has further failed to handle Plaintiff's claim in good faith as required under Texas law.

DAMAGES

As a direct result of the collision, Plaintiff suffered a fractured wrist, requiring immobilization, surgical consultation, and ongoing physical therapy. Plaintiff has incurred medical expenses, lost wages from time away from work, and continues to experience pain, limited grip strength, and loss of use of his dominant hand. Plaintiff seeks recovery of all economic and non-economic damages allowed by law, and demands judgment against Defendant in the amount of $70,000.00, together with pre-judgment and post-judgment interest, court costs, and such other relief to which Plaintiff may be entitled.